

# Sasmita Moharana vs Susen Kumar Moharna ... .. Opp. Party on 13 May, 2026

**Author: Mruganka Sekhar Sahoo**

**Bench: Mruganka Sekhar Sahoo**

IN THE HIGH COURT OF ORISSA, CUTTACK

RPFAM No.44 of 2023

An application for revision under Section 401 of the Cr.P.C. read with Section 19 of Family Court's Act, 1984

Sasmita Moharana ... .. Petitioner

-Versus-

Susen Kumar Moharna ... .. Opp. Party

For Petitioner : Mr. Rabi Narayan Behera and  
Mr. G. N. Rout, Advocate

For Opp. Party : Mr. Jagabandhu Sahu, Sr. Advocate  
along with Mr. R. Panigrahi, Advocate

RPFAM No.85 of 2025

An application under Section 19 of the Family Court's Act, 1984.

Susen Kumar Moharana ... .. Petitioner

-Versus-

Sasmita Moharana ... .. Opp. Party

For Petitioner : Mr. Jagabandhu Sahu, Sr. Advocate  
along with Mr. R. Panigrahi, Advocate

For Opp. Party: Mr. Rabi Narayan Behera, Advocate  
Mr. G. N. Rout, Advocate

CORAM:

THE HONOURABLE SHRI JUSTICE MRUGANKA SEKHAR SAHOO

JUDGMENT

----- Date of hearing and Judgment :  
13th May, 2026

----- MRUGANKA SEKHAR SAHOO,  
J.

Both the revision applications involve the same parties, the husband and the wife in the marriage. The applications arising out of one proceeding before the learned Family Court, Dhenkanal.

2. RPFAM No.44 of 2023 has been filed by the wife in the marriage challenging the judgment dated 17.02.2022 passed by the learned Judge, Family Court, Dhenkanal in Criminal Proceeding No.109 of 2021. The application was filed under Section 125 of the Cr.P.C. by the wife in the marriage, the marriage having been solemnized on 13.07.2020. The wife claimed Rs.40,000/- as monthly maintenance. The application was favoured, however, directing payment of monthly maintenance @ Rs.15,000/- from the date of filing of application under Section 125, Cr.P.C. By filing the revision under Section 401, Cr.P.C. read with Section 19 of the Family Court's Act the wife in the marriage petitioner seeks enhancement of the quantum of monthly maintenance.

3. The RPFAM No.85 of 2025 is by the husband in the marriage seeking revision of the judgment dated 17.02.2022 in Cr.P. No.109 of 2021 denying his liability to pay monthly maintenance, to set aside the judgment passed by the learned Judge, Family Court, Dhenkanal.

4. As the events have unfolded, though somewhat parallelly, MATA Nos.128 & 129 of 2023 were filed earlier before this Court challenging the common judgment dated 21.01.2023 passed by the learned Judge, Family Court, Dhenkanal.

The said judgment was made in C.P. No.19 of 2021 filed by the wife in the marriage seeking restitution of conjugal rights under Section 9 of the Hindu Marriage Act along with C.P. No.128 of 2021 filed by the husband in the marriage seeking dissolution of marriage under Section 13 (1) (i-a) and (i-b) of the Hindu Marriage Act.

5. Both the CPs were taken up together by the learned Judge, Family Court and were disposed of by common judgment dated 21.01.2023 allowing the application filed by the husband for grant of decree of divorce and dissolution of marriage, whereas rejecting the application under Section 9 filed by the wife seeking restitution of conjugal rights.

6. The Division Bench of this Court allowed the MATA filed by the husband and dismissed the MATA filed by the wife, confirmed the judgment passed by the learned Judge, Family Court made in both the C.Ps. The Division Bench also confirmed the direction of the learned Judge, Family Court regarding the wife in the marriage not being entitled for any permanent alimony under Section 25 of the Hindu Marriage Act.

7. Challenging the judgment of the Division Bench and appeal was filed before the Hon'ble Apex Court by the wife in the marriage: Sasmita Moharana v. Susen Kumar Maharana arising out of SLP(C) No.7359-7360 of 2025.

The Hon'ble Supreme Court issued limited notice only with respect to the permanent alimony, observed thus:

"... .. In our considered view, the reasoning adopted by the Family Court as confirmed by the High Court in refusing to grant permanent alimony in its entirety cannot be sustained in the eye of law. The legislative intent behind the Hindu Marriage Act, 1955, is very clear. The object is to facilitate the grant of permanent alimony, even while considering an application for divorce filed by the husband.

The legislation being a welfare legislation, we are inclined to remand the matter to the Family Court to decide the issue of permanent alimony afresh after recording the necessary evidence.

We make it clear that the decree of divorce stands confirmed.

The appeals are disposed of in the above terms.

Pending application(s), if any, shall also stand disposed of."

8. Learned advocate on the record for the husband in the marriage files memo of date enclosing copy of the order passed by the Hon'ble Apex Court dated 12.03.2026 as well as the judgment of the Division Bench dated 11.09.2024, serving copy thereof on the learned counsel for the wife in the marriage.

The Memo with enclosers is taken on record scanned copy be updated.

9. It is submitted by the learned Senior Counsel appearing for the husband that the wife has also filed an application under Section 146, Bharatiya Nagarik Suraksha Sanhita, 2023 seeking alteration of allowance granted under Section 125 (Section 144 of BNSS) which is pending adjudication before the learned Judge, Family Court.

It is further submitted by the learned Senior Counsel that both the proceedings, i.e., under Section 146 of BNSS pending before the learned Judge, Family Court and the present proceeding filed under Section 401 of Cr.P.C. challenging the earlier judgment under Section 125, Cr.P.C. cannot be pursued simultaneously.

10. Now this Court is presented with a situation that during pendency of the revision application filed by both the parties in the year 2023 and 2025 there is a decree of divorce confirmed by this Court by judgment dated 11.09.2024; and order of the Hon'ble Apex Court dated 12.03.2026.

Confirming the decree of divorce and remanding the matter for consideration of wife's claim towards permanent alimony under Section 25 of the Hindu Marriage Act. As directed by the Hon'ble Apex Court in judgement dated 12.03.2026, the proceeding under Section 25 of the Hindu Marriage Act for determination of permanent alimony is pending before the learned Judge, Family Court.

11. The directions contained in the decision *Rajnesh v. Neha*: (2021) 2 SCC 324: 2020 INSC 631 paragraphs-128, 128.1, 128.2,128.3 and 134 are reproduced herein:

"(a) Issue of overlapping jurisdiction

128. To overcome the issue of overlapping jurisdiction, and avoid conflicting orders being passed in different proceedings, it has become necessary to issue directions in this regard, so that there is uniformity in the practice followed by the Family Courts/District Courts/Magistrate Courts throughout the country. We direct that:

128.1. (i) Where successive claims for maintenance are made by a party under different statutes, the court would consider an adjustment or set-off, of the amount awarded in the previous proceeding(s), while determining whether any further amount is to be awarded in the subsequent proceeding. 128.2. (ii) It is made mandatory for the applicant to disclose the previous proceeding and the orders passed therein, in the subsequent proceeding. 128.3. (iii) If the order passed in the previous proceeding(s) requires any modification or variation, it would be required to be done in the same proceeding.

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134. A copy of this judgment be communicated by the Secretary General of this Court, to the Registrars of all High Courts, who would in turn circulate it to all the District Courts in the States. It shall be displayed on the website of all District Courts/Family Courts/Courts of Judicial Magistrates for awareness and implementation."

12. In view of the law laid down in *Rajnesh* (supra) in the paragraphs quoted above, the application seeking permanent alimony under Section 25 of the Hindu Marriage Act along with the application said to have been filed under Section 127 of the Cr.P.C. (since repealed as substituted the pari materia provision contain in Section 146 of Bharatiya Nagarik Suraksha Sanhita, 2023) need to be tried by the learned Judge, Family Court together.

13. The revision applications now under consideration cannot be kept pending as the issue of permanent alimony has to be considered by the learned Family Court under Section 25 of the Hindu Marriage Act as directed by the Apex Court along with the application under Section 127, Cr.P.C./Section 146 BNSS, 2023.

14. Accordingly, both the RPFAM No.44 of 2023 and RPFAM No.85 of 2025 are disposed leaving the parties to peruse the pending matters as indicated above.

15. Copy of this Judgment shall be forwarded to the learned Family Court, Dhenkanal to be kept in the records of C.P. No.19 of 2021 and C.P. No.128 of 2021.

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M.S. Sahoo, J.

Orissa High Court, Cuttack The 13th April,2026/Gs